

**Stereo. HCJDA.38.**

**Judgment Sheet.**  
**IN THE LAHORE HIGH COURT LAHORE**  
**JUDICIAL DEPARTMENT.**

**Case No. Writ Petition No.610/2008**

**Qazi Tehmid Ahmed**

**Versus**

**Secretary Ministry of Petroleum etc**

|                           |                                              |
|---------------------------|----------------------------------------------|
| <b>Date of hearing</b>    | <b>08.9.2014</b>                             |
| <b>Petitioner by</b>      | <b>Mr. Zafar Hussain Chaudhary, Advocate</b> |
| <b>Respondents<br/>by</b> | <b>Ms. Sumaira Fazil Khan, Advocate</b>      |

**Abid Aziz Sheikh, J.-** Through this Constitutional Petition, the petitioner has assailed the order dated 18.5.2007 whereby the services of the petitioner were terminated simpliciter during probation period and order dated 22.8.2007 whereby the appeal of the petitioner was dismissed by respondent No.1.

2. Brief facts are that petitioner was appointed as Law Officer with Sui Northern Gas Pipeline Limited (SNGPL) vide appointment letter dated 28.9.2005. The appointment was on probation for a period of one year. The probation period was

further extended for six months vide letter dated 21.11.2006 ending on 11.4.2007. However, vide letter dated 18.5.2007, the Committee after evaluating performance of the petitioner decided not to extend probationary period of the petitioner and terminated petitioners services simpliciter against one month salary in lieu of notice. The petitioner being aggrieved filed appeal before respondent No.1 which was also dismissed vide order dated 22.8.2007. The petitioner being aggrieved of orders dated 18.5.2007 and 22.8.2007 (herein after referred impugned orders) has filed this Constitutional Petition.

3. Learned counsel for the petitioner submits that impugned orders are not sustainable because as per terms and conditions of the petitioner appointment letter, after completion of one year probationary period, services of the petitioner was liable to be confirmed, therefore, further extension of probationary period for 06 months and thereafter, termination through impugned orders is not legal. Further contends that petitioner has not been given any hearing or notice before passing impugned orders which amounts to violation of rule of natural justice. Further contends that performance of petitioner was up to the mark, therefore, there was no occasion to terminate the services of the petitioner. On the question of maintainability of the petition, it is argued that though the service rules of SNGPL are not statutory in nature, however, the petitioner services could not be terminated under the said rules but under the removal from services (special powers) Ordinance, 2000 (herein after referred as Ordinance), therefore, the Constitutional Petition before this Court is maintainable. Reliance is placed on *Qaiser Masud v. Secretary*

Law and Parliamentary Affairs, Government of Punjab and another (2011 SCMR 1181), Mirza Rizwan Ahmed v. Chairman, Technical Education and Vocational Training Authority, Government of Punjab, Lahore and another (2008 PLC (C.S.) 224), Muhammad Rafique v. Director General, Pakistan Rangers (Sindh) (2003 PLC (C.S.) 1418, Azizullah Memon v. Province of Sindh and another (2007 SCMR 229), Zarai Taraqati Bank Ltd v. Hakeem Khan (2011 SCMR 577), Muhammad Ashraf v. Director General, Multan Development Authority, Multan and another (2000 PLC (C.S.) 796), Muhammad Akram v. Mst. Farman Bi (PLD 1990 Supreme Court 28), Messrs Flying Board Paper Production Ltd v. Messrs Lab. Aids Corporation (1996 MLD 1238), Shahid Mehmood Usmani v. House Building Finance Corporation through Managing Director and others (2010 PLC (C.S.) 1360), Syed Arshad Ali and 55 others v. Pakistan Telecommunication Company Ltd through President and 8 others (PLD 2007 Karachi 214), Jawaid Ghaffoor v. Pakistan Civil Aviation Authority and another (2010 PLC (C.S.) 276), Federation of Pakistan through Secretary, Establishment Division, Islamabad and another v. Sheikh Abdul Aziz (1998 SCMR 91), Fateh Khan v. Sharaaf Khan (PLD 1984 Lahore 106), Messrs Huffaz Seamless Pipe Industries Ltd v. Sui Northern Gas Pipeline Ltd and others (1998 CLC 1890 Lahore), Muhammad Ilyas v. Managing Director, Sui Northern Gas Pipelines Limited, Lahore and 3 others (1998 CLC 600 Lahore) and Pakistan Defence Officers Housing Authority and others v. Lt. Col. Syed Jawaid Ahmed (2013 SCMR 1707).

4. Conversely, learned counsel for the respondents argued that the service of the petitioner was governed under the Executive Service Rules of SNGPL (herein after referred as rules). Contends that said rules were neither made by the government nor with the approval of the government, therefore, are not statutory in nature, hence, Constitutional Petition is not maintainable. Further argued that petitioner was appointed as Law Officer on probation for a period of one year vide letter dated 28.9.2005 which period was further extended for 06 months ending on 11.4.2007 vide letter dated 21.11.2006. However, thereafter, the petitioner probationary period was not further extended and his services were terminated simpliciter. Submits that petitioner was also given one month salary in lieu of notice as per terms and conditions of his service under the rules. Further submits that Ordinance is not applicable to the present case as petitioner was not dismissed or removed from service for any allegation but it was a simple case of non-extension of probationary period and simpliciter termination of service with one month pay in lieu of notice, therefore, this Constitutional Petition is not maintainable. Reliance is placed on “Abdul Wahad and others v. HBL and others (2013 SCMR 1383), Syed Nazir Gillani v. Pakistan Red Crescent Society (2014 SCMR 982), Muhammad Naseer Khan v. General Manager (HR-OPS) (2013 PLC (C.S.) 698) and unreported judgments Muhammad Nasim Asif etc v. SNGPL etc (Civil Petition No.104-L of 2013, Supreme Court of Pakistan) Nasir Maqsood Qazi v. Federation of Pakistan etc (W.P.No.396/2014 Islamabad High Court,

**Islamabad) Muhammad Nasim Asif & another v. SNGPL etc**  
**(W.P.No.10402/2010 Lahore High Court, Lahore)**

5. I have heard the arguments of learned counsel for the parties and perused the record with their assistance.

6. Perusal of record shows that petitioner was appointed as Law Officer vide appointment letter dated 28.9.2005. The said appointment was on probation for a period of one year during which employment could be terminated by either party after giving one month notice in writing without assigning any reason. Clause 10 of the said appointment letter specifically provide that services of the petitioner with SNGPL will be governed by Executive Service Rules as amended from time to time. On completion of one year, the petitioner was not confirmed but management extended his probationary period for another six months ending on 11.4.2007. On expiry of aforesaid extended probationary period, further extension was not granted to the petitioner and his services were terminated simplicitor after giving one month salary in lieu of notice. The record shows that termination of the petitioner was not a dismissal or removal from service due to any allegation but it was a case of non-extension of probationary period of the services of the petitioner and his termination simpliciter with one month salary in lieu of notice. The argument of learned counsel for the petitioner that after expiry of one year probationary period, no further extension for 6 months could be granted and service of the petitioner was liable to be confirmed automatically is not only mis-conceived but also

contrary to relevant rules. Clause 6 of the rules relates to the probation, which is reproduced hereunder:-

**“6.00 Probation**

*6.1. Persons appointed by direct recruitment shall be on probation for a period of one year or until such time as they are confirmed. This period may be curtailed for good and sufficient reasons to be recorded or if considered necessary, it may be extended by the Competent Authority for a further period not exceeding one year.*

*6.2. On the satisfactory conclusion of his/her probationary period the Competent Authority may confirm the executive in his/her appointment.*

*6.3. If, in the opinion of the Manager of Department, the work or conduct of an executive on probation is unsatisfactory or shows that he/she is not likely to become efficient, the Competent Authority may terminate his/her services without assignment any reason with one month's notice or payment of remuneration in lieu thereof.”*

The perusal of rule 6 *ibid* shows that probationary period could be extended by the Competent Authority and in case the performance during probationary period is not satisfactory, the Competent Authority could also terminate the services with one month notice or payment of remuneration in lieu thereof. There is no concept of automatic confirmation as argued by the learned counsel for the petitioner. The Hon'ble Supreme Court in case

reported as Federation of Pakistan vs. Hashim Shah Qureshi (1987 PSC 87) held that on satisfactory completion of probation a Civil Servant can only claim to have become eligible for confirmation and nothing more. Further held that there is no concept of automatic confirmation and that it is in the discretion of the employer exercisable on the availability of permanent post”. Similarly in **(1998 PLC (CS) 828)** titled Gohar Vs. M.D SNGPL, it was held that very purpose of probationary period was to assess the performance of an employee during a specified period in which services of employee remained purely temporary”. In **(NLR 1998 Service 124)** titled M. Munir Vs. Government of Punjab, it was held that simpliciter termination during probationary period does not require show cause notice or any other legal formality and simpliciter termination order during period of probation would be unexceptional-able and unquestionable”. Similar view was also expressed in Muhammad Hussain Naqshabandi v. Government of the Punjab and others (2004 SCMR 44), Muhammad Nadeem Ahmed and 18 others vs. Ms. Azhra Feroz Bakhat and 58 others (PLD 1968 SC 37) and Shahzada Shahpur Tan vs. Auditor General of Pakistan and another (PLD 1984 SC 430). In view of the relevant rules and case law discussed above, the successful completion of probationary period not to make ipso facto petitioner permanent unless the term of his appointment letter or rules applicable clearly indicate such intention. No such intention has been specified in clear terms in the appointment letter dated 28.9.2005 or under clause 6 of the rules rather it is specifically mentioned that on completion of probation, services could be terminated

with one month remuneration in lieu of notice. Therefore, it cannot be said that respondents have acted illegally by not confirming the petitioner automatically on expiry of probation period of one year.

7. On the question of maintainability of this petition, I have noted that the Executive Service Rules of SNGPL are neither framed by government nor same are made with the approval of the government, thus it does not have a statutory force behind it. It is settled law that where rules are not statutory, Constitutional Petition is not maintainable. In similar (**writ petition No.10402 of 2010**) titled Muhammad Nasim Asif & another v. SNGPL etc, this Court held that SNGPL rules being not statutory, Constitutional Petition is not maintainable, it is expedient to reproduce the relevant extract as under:-

*“On the other hand learned counsel for the respondents has referred to number of judgments of the Apex Court of the country showing that the Sui Northern Gas Pipeline Limited is a public Limited Company which is listed with Security and Exchange Commission of Pakistan; it functions through its Board of Directors which is fully independent and competent to manage the affairs of the company in accordance with the Article and Memorandum of Association. The company generate its own funds and government is not contributing any funds to the company. The company is amenable to the Income Tax Laws and pays Income Tax to the Government. The company also distributes funds to its shareholders. The Ministry of Petroleum and Establishment in various letters has*



*clarified the position that the SNGPL is neither a part of the Ministry nor Division or Department of the Government. The service rules are non statutory therefore, as per law laid down in the case reported as Aman Ullah Khan vs. MD Pasco etc (2012 PLC 96), Executive Council, Allama Iqbal Open University Islamabad through Chairman and others vs. M. Tufail Hashmi (2010 SCMR 1484), Pakistan International Airline Corporation and others vs. Tanweer-ur-Rehman and others (PLD 2010 S.C. 676) and Pakistan Telecommunication Co. Ltd. Through Chairman vs. Iqbal Nasir and others (PLD 2011 S.C. 132), this writ petition is not maintainable.*

The aforesaid judgment was upheld by the august Supreme Court of Pakistan in Muhammad Nasim Asif and another v. SNGPL etc (Civil Petition No.104-L/2013), where it is held as under:-

*“Apart from that the petitioners’ service with the Sui Northern Gas Pipelines Limited was not governed by any statutory rules and, thus, we have not been able to take any legitimate exception to the impugned order passed by the learned Judge-in-Chamber of the Lahore High Court, Lahore whereby the petitioner’s Writ Petition had been dismissed as not maintainable. This petition, is, therefore, dismissed and leave to appeal is refused”.*

8. In another judgment dated 11.2.2011 passed by this Court in SNGPL's case titled Mehtab Baig vs. MD SNGPL (**writ petition No.21389/2010**), it was held as under:

*“The terms and conditions of service of the petitioner are admittedly non-statutory. The service of the petitioner is, therefore, governed by the principle of master and servant and the instant petition is not maintainable. Reliance is placed on Pakistan International Airline Corporation and others V. Tanweeer-ur-Rehman and others (PLD 2010 SC 676), Chairman, State Life Insurance Corporation and others Vs. Hamayun Irfan and 2 others (2010 SCMR 1495), the Principal, Cadat College, Kohat and another V. Muhammad Shoaib Qureshi (PLD 1984 SC 170) and an unreported judgment passed by the Hon'ble Supreme Court of Pakistan in Civil Appeal No.468 of 2010 dated 30.10.2010”*

*For the above reasons, the instant petition is not maintainable and is, therefore, dismissed.*

Similarly, the Divisional Bench of the Hon'ble Peshawar High Court in SNGPL's case titled Mian Wahid vs. MD SNGPL, in (**writ petition No.1499/2006**) held as under:-

*“We tend to agree with the arguments of the learned counsel for the respondent that under Article 199, the Extra Ordinary Powers of the court can be invoked only with regard to the wrong exercise of jurisdiction by public functionaries and the respondent, being the Managing Director of a non-statutory body, cannot be deemed to be a functionary of the State or of the Local Body, Hence, the writ is not technically maintainable.*

Similarly this Court in (**writ petition No.956/2006**) titled Mst. Azra Parveen v. Managing Director SNGPL etc held as under:

*This writ petition having been filed against Sui Northern Gas Pipelines Limited which is a Limited company and not governed by any Statutory Rules, is not competent within the meaning of words “person” under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Dismissed being not maintainable”.*

This Court in (**writ petition No.2099/2009**) titled S.M. Zaman Bukari Vs. SNGPL etc held as under:-

*“The executive staff working in the company are governed by the Executive Staff Service Rules which are non-statutory. Learned counsel by the respondents has relied upon the cases of Ali Gohar vs. M.D. SNGPL etc W.P.No.3301/1997 (1998 PLC CS 828) and Mst. Zeba Mumtaz vs. First Women Bank Ltd and others (PLD 1999 SC 1106) and also relied on unreported judgment of this Court passed in writ No.956/2006. I have heard the learned counsel for the parties and perused the judgments referred above. Sui Northern Gas Pipelines Limited is a Public Ltd. Company. The executive staff is governed by non-statutory service rules. So no writ lies against the public Ltd. Company. The writ petition is dismissed in limine being non maintainable.*

The aforesaid view was also followed recently by Islamabad High Court vide order dated 09.4.2014 in case titled *nasir Maqsood Qazi vs. Federation of Pakistan etc* (**W.P.No.396/2014**), where it is held that SNGPL Rules being not statutory, writ is not maintainable. In this context, reliance is also placed on *Syed Nazir Gillani vs. Pakistan Red Crecent Society and another* (**2014 SCMR 982**), *Abdul Wahab vs. HBL* (**2013 SCMR 1383**), *Habib Bank Ltd Vs. State* (**2013 SCMR 840**), *Aman Ullah Khan vs. MD Pasco etc* (**2012 PLC 96**), *Executive Council, Allama Iqbal Open University, Islamabad vs. M. Tufail Hashmi* (**2010 SCMR 1484**), *Pakistan International Airline Corporation and others Vs. Tanweer-ur-Rehman and others* (**PLD 2010 SC 676**) and *Pakistan Telecommunication Co. Ltd through Chairman vs. Iqbal Nasir and others* (**PLD 2011 SC 132**).

9. The argument of learned counsel for the petitioner that petitioner should have been proceeded under the Ordinance, therefore, this writ petition is maintainable is also without substance. Clause 10 of the appointment letter of the petitioner specifically provide that petitioner service will be governed under the rules. Further impugned order dated 18.5.2007 also shows that it was a case of non-extension of probationary period and simpliciter termination under the rules. It is settled law that simpliciter termination without stigma can be made as per terms of the service contract. In this context reliance is placed on *Agha Saleem Khurshid and others v. Federation of Pakistan and others* (**1998 SCMR 1930**) and *Secretary, Government of the Punjab*

through Secretary, Health Department and others v. Riaz ul Haq (1997 SCMR 1552). The plea of the learned counsel for the petitioner that petitioner should have been proceeded under the Ordinance and not under the rules has neither been taken by the petitioner before the Appellate Authority where appeal of the petitioner was dismissed on 22.8.2007 nor this ground has been raised in the instant writ petition and no effort has been made to raise additional grounds in this petition through formal application. Accordingly, the arguments of the learned counsel for the petitioner beside being without merit is also beyond pleadings and on the face of it, is an after thought. In any case, section 12 of the Ordinance provides that only in respect of matters and persons in service which are provided for in the Ordinance, the provision of ordinance will apply. It is expedient to reproduce Section 3 and Section 12 of the Ordinance as under:-

**Section 3.** (Dismissal, removal and compulsory retirement etc) of certain persons in Government or corporation service, etc ---(1) Where, in the opinion of the competent authority, a person in Government or corporation service, is---

- (a) inefficient, or has ceased to be efficient for any reasons, (or is guilty of being habitually absent from duty without prior approval of leave; or)
- (b) guilty of misconduct;
- (c) corrupt, or may reasonably be considered as corruption, because-
  - (i) he, or any of his dependents or any other person, through him or on his behalf, is in possession of pecuniary (sources) or of property, for which he cannot reasonably account for, and which are disproportionate to his known sources of income; or

- (ii) He has assumed a style of living beyond his known sources of income; or
- (iii) he has a persistent reputation of being corrupt; or
- (iv) he has entered into plea bargaining under any law for the time being in force and has returned the assets or gains acquired through corruption or corrupt practices voluntarily; or
- (d) engaged, or is reasonably believed to be engaged, in subversive activities, and his retention in service is prejudicial to national security or he is guilty of disclosure of official secrets to any unauthorized person; or
- (e) found to have been appointed or promoted on extraneous grounds in violation of law and the relevant rules,

The competent authority, after inquiry by the (inquiry officer or the inquiry committee appointed) under section 5, may, notwithstanding anything contained in any law or the terms and conditions of service of such person, by order in (writing) dismiss or remove such person from service, compulsorily retire from service or reduce him to lower post or pay scale, or impose one or more minor penalties as prescribed in the Government Servants (Efficiency & Discipline) Rules, 1973.

**Section 12.** Proceedings under this Ordinance---All proceedings initiated on the commencement of this Ordinance in respect of matters and persons in service provided for in this Ordinance shall be governed by the provisions of this Ordinance and rules made there under.

10. The perusal of Section 3 read with section 12 shows that the matters which are governed under the Ordinance are dismissal, removal from service, compulsory retirement, reduction to lower post or pay scale or impose one or more minor penalties as prescribed in the Government Servant (Efficiency & Discipline Rules, 1973 for grounds specified under Section 3 *ibid.* As, the petitioner was not dismissed or removed from

service due to any allegations, but it was a case of non-extension of probationary period and simpliciter termination the same was governed under the rules and not the Ordinance.

11. I have also gone through the case law relied upon by the learned counsel for the petitioner which is inapt to the facts and circumstances of this case.

12. For the above reasons, the instant writ petition is not maintainable and therefore dismissed.

**(Abid Aziz Sheikh)  
Judge.**

**Approved for Reporting.**

**(Abid Aziz Sheikh)  
Judge.**

Rizwan